

		The Court Clerk is to provide notice of the Court's ruling.
8	30-2026-01579803 Tustin Parc L.P. vs. Marin	This case is off calendar. The Motion to Dismiss was ruled on 7/20/2026.
9	30-2026-01569359 USCMF Joule La Floresta, LLC vs. Yazouri	Pending; check back later
10	30-2026-01577309 Yang vs. Byun	The Court has read and considered the Defendant's Demurrer to the Amended Complaint (ROA 30) and the Amended Complaint (ROA 20). The Court finds that <i>Summit Office Park, Inc. v. United States Steel Corp.</i> (hereinafter "<i>Summit</i>"), 639 F.2d 1278 (1981), is distinguishable from the facts in this case. Summit, an indirect purchaser, attempted to file an amended complaint after a Supreme Court decision saying that indirect purchasers had no cause of action under federal antitrust laws, to add two new plaintiffs who were purported to be direct purchasers and to change the cause of action. As indicated by the <i>Summit</i> Court, the circumstances of that case were unique and there was no way in which the plaintiff could properly amend the complaint to give it a cause of action after the Supreme Court decision. This Court finds the holding of the California Supreme Court in <i>Klopstock v. Superior Court of San Francisco</i> (1941) 17 Cal.2d 13 to be more directly on point to the issues in this matter. On July 15, 2026, this Court sustained the Defendant's demurrer, giving the Plaintiff leave to amend the complaint within 10 business days. During the original filing, Choun Yang filed the unlawful detainer proceeding as an individual named on the lease as the housing provider, but the demurrer was originally sustained on July 15, 2026, because a trust is the legal owner of the property. The Amended Complaint shows the plaintiff as Choun Yang, trustee of the trust, which is suing on the same basis for the unlawful detainer action; the amendment does not constitute a statement of a wholly different cause of action. The Court OVERRULES the Demurrer to the Amended Complaint. The Defendant is ordered to file an answer within 5 business days. The Court Clerk is to provide notice of the Court's ruling.
11	30-2026-01584197 Cecilia & John III LLC vs. Thomson	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10) and the Complaint (ROA 2) The Court SUSTAINS the Demurrer with leave to amend. Nothing is attached to the Complaint; the Complaint is vague and ambiguous as currently pleaded. The Plaintiff is ordered to amend the Complaint within 5 business days, or the matter will be dismissed. The Court sets an OSC re dismissal on 8/28/2026 at 8:30 AM in Department C61.